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NATURE OF PROCEEDINGS: Hearing on Plaintiffs' Motion
for Relief from Dismissal

Plaintiffs' Motion for Relief from Dismissal is granted in part and denied in part. The dismissal is set aside and the first through fourth causes of action proceed; the fifth and sixth causes of action are not revived.

BACKGROUND

Plaintiffs Mark S. Harvey and Phyllis Harvey (Plaintiffs) filed this Song-Beverly Consumer Warranty Act action against FCA US, LLC (FCA) and Crystal Chrysler Dodge Jeep Ram (the Dealership) (collectively "Defendants"), alleging that the 2025 Ram 1500 they purchased suffered from defects Defendants were unable to repair.

The causes of action are: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement by concealment.

On December 18, 2025, the Court sustained Defendants' demurrer to the fifth and sixth causes of action with leave to amend, and granted Defendants' motion to strike the prayer for punitive damages with leave to amend. The demurrer did not reach the first through fourth causes of action. Plaintiffs' deadline to amend expired on January 7, 2026, and Plaintiffs did not amend.

On March 16, 2026, the Court dismissed the entire action without prejudice under Code of Civil Procedure section 581, subdivision (f)(2). A judgment of dismissal was entered on March 30, 2026.

Plaintiffs filed a Motion for Relief from Dismissal.

Defendants filed an Opposition.

LEGAL STANDARD

A court has discretion to grant a party relief from a judgment, order, or other proceeding taken against that party through the party's mistake, inadvertence, surprise, or excusable neglect. Code Civ. Proc., § 473 subd. (b) (§ 473(b)). "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." Code Civ. Proc. § 473(b).

In addition to discretionary relief, Code of Civil Procedure section 473(b) provides that when an application for relief is made no more than six months after entry of default and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, the court shall set aside a default or resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. Code Civ. Proc., § 473(b). "[I]f the prerequisites for the application of the mandatory provision of section 473, subdivision (b) exist, the trial court does not have discretion to refuse relief." (Leader v. Health Industries of America (2001) 89 Cal.App.4th 603, 612 (Leader).)

ANALYSIS

I. The Section 581(f)(2) Dismissal

Plaintiffs first argue that the dismissal must be set aside because their Song-Beverly causes of action survived the demurrer and the action was not subject to dismissal. The Court agrees and concludes that the dismissal exceeded the authority conferred by section 581, subdivision (f)(2).

A demurrer may be directed to the complaint as a whole or to one or more of its individual causes of action, and it must specify which it challenges. (Code Civ. Proc., § 430.50, subd. (a); Cal. Rules of Court, rule 3.1320(a).) Section 581, subdivision (f)(2), authorizes the Court to dismiss the complaint when, “after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” (Code Civ. Proc., § 581, subd. (f)(2).) That authority extends only to a complaint that has failed as to a defendant, and the implementing rule frames the resulting motion as one to dismiss the entire action. (Cal. Rules of Court, rule 3.1320(h).) Where a demurrer is sustained as to fewer than all causes of action and viable causes remain against the same defendant, the failure to amend does not leave a complaint that has failed as to that defendant, and no dismissal under section 581, subdivision (f)(2), is available. (Cf. *Gogri v. Jack in the Box, Inc.* (2008) 166 Cal.App.4th 255, 269 [a ruling resolving some but not all causes of action does not dispose of the entire action].)

Here, Defendants demurred only to the fifth and sixth causes of action; the demurrer challenged those two claims alone. The first through fourth causes of action, all against FCA, were never challenged and required no amendment. When Plaintiffs did not amend, the demurred claims were forfeited, but the first through fourth causes remained viable against FCA. The complaint therefore had not failed as to FCA, and section 581, subdivision (f)(2), supplied no basis to dismiss it. The March 16, 2026, dismissal of the entire action and the March 30, 2026, judgment entered on it exceeded the statute's authorization.

A trial court has inherent power to set aside a judgment or order it entered through its own inadvertence, including an involuntary dismissal rendered under a misapprehension of the state of the record. (*Key System Transit Lines v. Superior Court* (1950) 36 Cal.2d 184, 186-188.) The demurrer reached only the fifth and sixth causes of action, and the first through fourth causes remained viable against FCA and required no amendment. That Plaintiffs framed their motion under section 473, subdivision (b), does not confine the Court, because the inherent power supports the vacatur regardless of the ground the motion invoked. (*Key System*, *supra*, 36 Cal.2d at p. 186.) Accordingly, the March 16, 2026 dismissal and the March 30, 2026 judgment are set aside.

Setting aside the dismissal allows Plaintiffs to proceed on

the first through fourth causes of action to the Complaint. It does not revive the fifth and sixth causes of action. The order sustaining the demurrer to those causes with leave to amend was a separate ruling that the dismissal's invalidity does not disturb, and Plaintiffs, having elected not to amend, stand on the pleading as to those causes. (Hendy, *supra*, 54 Cal.3d at p. 742.) The sustained demurrer stands, and the fifth and sixth causes remain subject to review on appeal from the eventual final judgment. Whether Plaintiffs may instead obtain relief permitting a late amendment to revive those causes is governed by section 473, subdivision (b), which is addressed below.

II. Mandatory Relief

Plaintiffs separately invoke section 473, subdivision (b), to revive the fifth and sixth causes of action. They first seek mandatory relief. The mandatory provision does not apply.

The mandatory provision reaches only dismissals that are the procedural equivalent of a default, that is, dismissals entered because counsel failed to oppose a dismissal motion. (Leader, *supra*, 89 Cal.App.4th at p. 620.)

In Leader, the trial court sustained a demurrer to the plaintiffs' third amended complaint with leave to amend; the plaintiffs failed to amend timely, and the action was dismissed; the Court of Appeal held the mandatory provision unavailable because the failure to amend did not deprive the plaintiffs of their day in court on the demurrer. (Id. at pp. 620-621.) The same is true here. Plaintiffs opposed the demurrer, do not challenge the ruling sustaining it, and lost the fifth and sixth causes of action through their later failure to amend, not through any failure to oppose a dismissal motion. A request for more time to amend is not analogous to a default. Accordingly, to the extent Plaintiffs seek not to set aside and vacate the dismissal but to obtain more time to file an amended complaint, the mandatory provision does not reach that relief.

The application is independently defective because it is not in proper form. The proper-form requirement incorporates the requirement that the application be accompanied by the pleading proposed to be filed. (Hernandez v. FCA US LLC (2020) 50 Cal.App.5th 329, 336-337.) Plaintiffs submitted no proposed amended complaint, so the Court cannot determine whether the defects identified in the ruling on the demurrer can be cured. Accordingly, mandatory

relief is denied as to the fifth and sixth causes of action.

III. Discretionary Relief

Plaintiffs alternatively seek discretionary relief to revive the fifth and sixth causes of action. That relief is also unavailable.

The discretionary provision requires that the application “be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted.” (Code Civ. Proc., § 473, subd. (b).) Plaintiffs submitted no proposed amended complaint. Accordingly, discretionary relief is denied as to the fifth and sixth causes of action.

CONCLUSION

Plaintiffs’ Motion for Relief from Dismissal is granted in part and denied in part. The March 16, 2026 dismissal and the March 30, 2026 judgment are set aside, and the first through fourth causes of action proceed on the Complaint. The fifth and sixth causes of action are not revived; the order sustaining the demurrer to those causes stands, and the prayer for punitive damages remains stricken. FCA shall file an Answer to the first through fourth causes of action within thirty days.